

BSA 2023

Bharatiya Sakshya Adhiniyam, 2023

Bharatiya Sakshya Adhiniyam (BSA), 2023

User Query :

Someone created a fake Instagram account using my name, photographs and other profile details. The person is messaging my friends and relatives while pretending to be me and asking them for money because of a supposed emergency. Two of my friends have already transferred money to the account mentioned in those messages. What legal provisions may apply?

Job Id. :

qwen3-30b/Scenario 2/Bharatiya Sakshya Adhiniyam (BSA), 2023

Prepared by :

NyaySahayak

Date :

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NyaySahayak

AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 61 — Electronic or digital record

Instagram records and messages are electronic/digital records.

Section 62 — Special provisions as to evidence relating to electronic record

Links proof of contents to **section 63** .

Section 63 — Special provisions relating to electronic records

Relevant to screenshots/messages and transaction records.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- Sections 61-63 are the direct electronic-evidence provisions for the records described.

✓ STRENGTHS & RIGHTS

- 1
- Platform messages and bank records can corroborate the fraudulent scheme.

✗ RISKS & OBLIGATIONS

- 1
- Do not treat a record as a book-of-account entry merely because it is electronic.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1.
- Retain original messages and transaction records, not only screenshots.

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